

HOUSE BILL 1860

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4; Title 10, Chapter 7; Title 40 and Title 41,
relative to records available for review by
members of the general assembly.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) Notwithstanding another law to the contrary, the department of correction shall disclose records and information to any member of the general assembly to enable the member to determine whether the laws of this state are being complied with regarding inmates in the department's custody.

(b) If a member of the general assembly receives a written inquiry regarding whether the laws of this state regarding inmates are being complied with or whether the laws of this state need to be changed, then the member of the general assembly may submit a written request to the department of correction, requesting review of the records and information relating to the inquiry. The member shall include in the request the name of the inmate whose case file is to be reviewed and any other information that will assist the department in locating the information.

(c) The member shall sign a form before reviewing the records and information that outlines the state and federal laws regarding confidentiality and the penalties for unauthorized release of the information. All records and information being reviewed by a member of the general assembly must remain in the department's possession.

(d) After reviewing the records and information, if the member requests additional information, the department shall discuss with the member the circumstances related to the records and information being disclosed.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.